

SENATE No. 2886

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 15, 2025.

The committee on The Judiciary, to whom was referred the petitions (accompanied by bill, Senate, No. 404) of Joan B. Lovely and John F. Keenan for legislation relative to supporting survivors of child sexual abuse; (accompanied by bill, Senate, No. 1029) of Michael J. Barrett for legislation to eliminate the public counsel fee; (accompanied by bill, Senate, No. 1031) of Michael D. Brady for legislation to amend the foreclosure statute to require judicial foreclosure; (accompanied by bill, Senate, No. 1032) of Michael D. Brady for legislation relative to child-centered family law; (accompanied by bill, Senate, No. 1040) of Nick Collins for legislation relative to the statute of limitations in rape, assault and human trafficking crimes; (accompanied by bill, Senate, No. 1049) of Cynthia Stone Creem for legislation relative to forfeiture reform; (accompanied by bill, Senate, No. 1063) of Julian Cyr for legislation to enhance the rights of crime victims in the Commonwealth; (accompanied by bill, Senate, No. 1066) of Sal N. DiDomenico for legislation to address discriminatory police reporting; (accompanied by bill, Senate, No. 1069) of Sal N. DiDomenico and Michael O. Moore for legislation to protect survivors of rape and their children; (accompanied by bill, Senate, No. 1070) of Sal N. DiDomenico for legislation relative to petit treason; (accompanied by bill, Senate, No. 1072) of William J. Driscoll, Jr., Dylan A. Fernandes and Paul R. Feeney for legislation to deposit money from fines collected from texting while driving into the head injury treatment services trust fund; (accompanied by bill, Senate, No. 1074) of Peter J. Durant for legislation to update proof of age documentation; (accompanied by bill, Senate, No. 1076) of Peter J. Durant and Bruce E. Tarr for legislation relative to penalties for loan of money secured by weapons; (accompanied by bill, Senate, No. 1086) of James B. Eldridge for legislation relative to judicial oversight of prisons housing; (accompanied by bill, Senate, No. 1088) of Ryan C. Fattman, David F. DeCoste and Bruce E. Tarr for legislation relative to illegal drug and firearm trafficking; (accompanied by bill, Senate, No. 1089) of Ryan C. Fattman and Bruce E. Tarr for legislation to strengthen the identity law; (accompanied by bill, Senate, No. 1090) of Ryan C. Fattman and Bruce E. Tarr for legislation relative to dangerousness hearings; (accompanied by bill, Senate, No. 1091) of Ryan C. Fattman and Bruce E. Tarr for legislation relative to direct food donations; (accompanied by bill, Senate, No. 1092) of Ryan C. Fattman and Bruce E. Tarr for legislation relative to defacing

property; (accompanied by bill, Senate, No. 1093) of Ryan C. Fattman and Bruce E. Tarr for legislation relative to health care proxy reform; (accompanied by bill, Senate, No. 1094) of Ryan C. Fattman, Steven George Xiarhos and Bruce E. Tarr for legislation relative to fentanyl arrests; (accompanied by bill, Senate, No. 1096) of Ryan C. Fattman, Alyson M. Sullivan-Almeida and Steven George Xiarhos for legislation to support and honor detention requests by the United States Immigration and Customs Enforcement; (accompanied by bill, Senate, No. 1097) of Rosemarie Rook, for legislation to appeal a notice of disinvitation to access a premises; (accompanied by bill, Senate, No. 1098) of Ryan C. Fattman for legislation relative to state officials to obtain a warrant before entering any private property; (accompanied by bill, Senate, No. 1099) of Paul R. Feeney for legislation to reform alimony in the Commonwealth; (accompanied by bill, Senate, No. 1100) of Paul R. Feeney for legislation relative to the federal tax collateral consequences of alimony; (accompanied by bill, Senate, No. 1103) of Paul R. Feeney for legislation to increase fines and penalties for check fraud and check washing; (accompanied by bill, Senate, No. 1104) of Dylan A. Fernandes relative to the penalties for violations of age of consent laws for young adults; (accompanied by bill, Senate, No. 1105) of Dylan A. Fernandes for legislation relative to employees of private railroads; (accompanied by bill, Senate, No. 1106) of Dylan A. Fernandes for legislation relative to police reports involving railroad fatalities; (accompanied by bill, Senate, No. 1108) of Barry R. Finegold for legislation relative to the malicious doxing of personal information; (accompanied by bill, Senate, No. 1111) of Barry R. Finegold for legislation relative to convictions of retirees and eligibility for pensions; (accompanied by bill, Senate, No. 1121) of Adam Gomez and Homar Gómez for legislation to update bail procedures for justice-involved youth; (accompanied by bill, Senate, No. 1123) of Adam Gomez for legislation to clarify the child advocate's authority to access juvenile records; (accompanied by bill, Senate, No. 1129) of Adam Gomez for legislation to eliminate standard conditions in probation; (accompanied by bill, Senate, No. 1131) of Adam Gomez for legislation relative to juvenile fees, fines, and restitution; (accompanied by bill, Senate, No. 1139) of John F. Keenan for legislation to restore the statute of limitations for deaths due to tobacco use; (accompanied by bill, Senate, No. 1141) of Edward J. Kennedy for legislation to encourage the donation of food to persons in need; (accompanied by resolve, Senate, No. 1151) of Vincent Dixon, that provisions be made for an investigation and study by a special commission to review, replace, and eliminate the Grand Jury System; (accompanied by bill, Senate, No. 1154) of Jason M. Lewis for legislation relative to visitation and family court matters in domestic violence cases; (accompanied by bill, Senate, No. 1157) of Jason M. Lewis for legislation to determine the best interest of children in probate and family court; (accompanied by bill, Senate, No. 1158) of Vincent Dixon, for legislation to enhance state anti-trust powers and enforcement; (accompanied by bill, Senate, No. 1160) of Vincent Dixon, for legislation to provide for the improvement of required standards of Clerk Magistrates; (accompanied by bill, Senate, No. 1161) of Jason M. Lewis for legislation relative to the expungement of convictions for marijuana possession; (accompanied by bill, Senate, No. 1162) of Jason M. Lewis for legislation relative to judicial discretion for probation; (accompanied by

bill, Senate, No. 1164) of Joan B. Lovely for legislation to prohibit discrimination against adults with disabilities in family and juvenile court proceedings; (accompanied by bill, Senate, No. 1166) of Joan B. Lovely, Joanne M. Comerford and Susannah M. Whipps for legislation to enhance hiring practices at schools to prevent sexual abuse; (accompanied by bill, Senate, No. 1167) of Joan B. Lovely, Michael D. Brady and Michael O. Moore for legislation to protect nonhuman primate infants in research institutions and product testing facilities; (accompanied by bill, Senate, No. 1170) of Joan B. Lovely for legislation relative to the partition of nominee trusts; (accompanied by bill, Senate, No. 1172) of Joan B. Lovely for legislation to protect unpaid interns, volunteers, and independent contractors from sexual harassment and other forms of discrimination; (accompanied by bill, Senate, No. 1185) of Mark C. Montigny for legislation to protect victims of rape and their children; (accompanied by bill, Senate, No. 1189) of Mark C. Montigny for legislation to address leaving the scene of an accident resulting in death aka Katie Brienzo's Law; (accompanied by bill, Senate, No. 1191) of Mark C. Montigny for legislation to protect survivors of domestic abuse; (accompanied by bill, Senate, No. 1192) of Mark C. Montigny, Christopher Hendricks, Dennis C. Gallagher, Steven George Xiarhos and other members of the General Court for legislation to provide a DNA exception for statute of limitations on sex offenses; (accompanied by bill, Senate, No. 1195) of Mark C. Montigny for legislation relative to public charity executive and board of directors compensation; (accompanied by bill, Senate, No. 1199) of Michael O. Moore for legislation to add law enforcement councils to the definition of employer under the tort claim law; (accompanied by bill, Senate, No. 1201) of Michael O. Moore for legislation to maintain protective orders after plaintiff's death; (accompanied by bill, Senate, No. 1202) of Michael O. Moore for legislation to update hunter harassment laws; (accompanied by bill, Senate, No. 1207) of Michael O. Moore, Michael D. Brady, James K. Hawkins, Manny Cruz and other members of the General Court for legislation relative to the ownership of pets by convicted animal abusers; (accompanied by bill, Senate, No. 1209) of Michael O. Moore for legislation relative to gift card tampering; (accompanied by bill, Senate, No. 1211) of Michael O. Moore for legislation relative to conditions of release in Superior Court; (accompanied by bill, Senate, No. 1212) of Michael O. Moore for legislation to enhance courthouse security; (accompanied by bill, Senate, No. 1213) of Michael O. Moore, James B. Eldridge and James K. Hawkins for legislation to establish a bill of rights for survivors of sexual assault and related purposes; (accompanied by bill, Senate, No. 1214) of Michael O. Moore for legislation to prevent car theft with digital devices; (accompanied by bill, Senate, No. 1216) of Patrick M. O'Connor and David F. DeCoste for legislation relative to the protection of police officers; (accompanied by bill, Senate, No. 1217) of Patrick M. O'Connor and Joseph D. McKenna for legislation to designate the right of disposition of human remains; (accompanied by bill, Senate, No. 1218) of Patrick M. O'Connor for legislation to protect innocent sellers; (accompanied by bill, Senate, No. 1219) of Patrick M. O'Connor for legislation relative to visitation rights of grandparents; (accompanied by bill, Senate, No. 1220) of Patrick M. O'Connor and Alyson M. Sullivan-Almeida for legislation to protect victims of crimes and the public; (accompanied by bill, Senate, No. 1223) of Patrick M. O'Connor for

legislation to empower and protect survivors of domestic violence; (accompanied by bill, Senate, No. 1224) of Patrick M. O'Connor for legislation to establish a domestic violence and sexual assault probation unit; (accompanied by bill, Senate, No. 1226) of Patrick M. O'Connor for legislation to protect survivors of domestic violence; (accompanied by bill, Senate, No. 1227) of Patrick M. O'Connor for legislation relative to bodily autonomy and family integrity; (accompanied by bill, Senate, No. 1228) of Patrick M. O'Connor for legislation relative to juvenile offenders; (accompanied by bill, Senate, No. 1229) of Patrick M. O'Connor, Paul W. Mark and Nick Collins for legislation to protect honest employers by creating construction private attorney general actions; (accompanied by bill, Senate, No. 1233) of Patrick M. O'Connor for legislation to set proportionate penalties for the distribution of heroin, fentanyl, and carfentanil; (accompanied by bill, Senate, No. 1234) of Steve Baer, for legislation to prohibit the harassment of animals; (accompanied by bill, Senate, No. 1235) of Jacob R. Oliveira for legislation relative to due process; (accompanied by bill, Senate, No. 1252) of Rebecca L. Rausch for legislation to establish a right to freedom from doxing; (accompanied by bill, Senate, No. 1255) of Michael F. Rush for legislation relative to bank robberies and collection of fraudulent checks; (accompanied by bill, Senate, No. 1257) of Bruce E. Tarr and Steven George Xiarhos for legislation relative to crimes relating to distribution of controlled substances causing death; (accompanied by bill, Senate, No. 1258) of Bruce E. Tarr for legislation relative to possession of narcotics and marihuana in motor vehicles; (accompanied by bill, Senate, No. 1259) of Bruce E. Tarr for legislation to recover assets used in the commission of sexual offenses; (accompanied by bill, Senate, No. 1261) of Bruce E. Tarr for legislation relative to strategic litigation against public participation; (accompanied by bill, Senate, No. 1263) of Bruce E. Tarr for legislation to promote pet safety aka Crawford's Law; (accompanied by bill, Senate, No. 1264) of Bruce E. Tarr for legislation relative to treble damages; (accompanied by bill, Senate, No. 1265) of Bruce E. Tarr and Jason M. Lewis for legislation relative to determining the best interest of children in probate and family court; (accompanied by bill, Senate, No. 1266) of Bruce E. Tarr for legislation to update the wiretap statutes in the Commonwealth; (accompanied by bill, Senate, No. 1268) of Bruce E. Tarr, Alyson M. Sullivan-Almeida and Steven George Xiarhos for legislation to enhance the authority of courts to protect public safety; (accompanied by bill, Senate, No. 1269) of Bruce E. Tarr for legislation relative to the tracking of medical malpractice cases; (accompanied by bill, Senate, No. 1270) of Bruce E. Tarr for legislation relative to protecting the residents of the Commonwealth from dangerous persons; (accompanied by bill, Senate, No. 1271) of Bruce E. Tarr for legislation to protect the people of the Commonwealth from criminal offenders; (accompanied by bill, Senate, No. 1272) of Bruce E. Tarr for legislation relative to public safety, fiscal responsibility and the emergency housing assistance program; (accompanied by bill, Senate, No. 1273) of Bruce E. Tarr for legislation relative the power of courts and judges to maintain election integrity; (accompanied by bill, Senate, No. 1274) of Gracemarie R. Tomaselli, , Joyce A. Tomaselli, , John Lundgren, , Sandra Lundgren, and others for legislation to strengthen rules governing attorney conduct; penalties for misconduct; (accompanied by bill, Senate, No. 1275) of John C. Velis for legislation relative to

wagering on recreational games at senior centers; (accompanied by bill, Senate, No. 1277) of John C. Velis, Joanne M. Comerford, Michael O. Moore, Michael D. Brady and other members of the General Court for legislation relative to the humane protection of animals; (accompanied by bill, Senate, No. 1278) of John C. Velis for legislation to establish the Massachusetts judicial security act; (accompanied by bill, Senate, No. 1279) of John C. Velis for legislation relative to legal advertisements in online-only newspapers; (accompanied by bill, Senate, No. 1280) of John C. Velis for legislation to clarify insurance liability for foster care providers; (accompanied by bill, Senate, No. 1281) of John C. Velis, Jason M. Lewis and John F. Keenan for legislation relative to domestic violence reports and confidentiality; (accompanied by bill, Senate, No. 1283) of John C. Velis for legislation to protect orders issued on behalf of a minor so that the order remains in effect until the expiration date of the order; (accompanied by bill, Senate, No. 1285) of John C. Velis for legislation relative penalties for shoplifting and judicial discretion when a person is dealing with a substance use disorder; and (accompanied by bill, Senate, No. 2637) (subject to Joint Rule 12) of Paul W. Mark for legislation to increase first assistant clerks in Berkshire County, report the accompanying Order (Senate, No. 2886).

For the committee,
Lydia Edwards

SENATE No. 2886

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

Senate, December 18, 2025.

1 *Ordered*, That the committee on The Judiciary be authorized and directed to make an
2 investigation and study of certain current Senate documents numbered 404, 1029, 1031, 1032,
3 1040, 1049, 1063, 1066, 1069, 1070, 1072, 1074, 1076, 1086, 1088, 1089, 1090, 1091, 1092,
4 1093, 1094, 1096, 1097, 1098, 1099, 1100, 1103, 1104, 1105, 1106, 1108, 1111, 1121, 1123,
5 1129, 1131, 1139, 1141, 1151, 1154, 1157, 1158, 1160, 1161, 1162, 1164, 1166, 1167, 1170,
6 1172, 1185, 1189, 1191, 1192, 1195, 1199, 1201, 1202, 1207, 1209, 1211, 1212, 1213, 1214,
7 1216, 1217, 1218, 1219, 1220, 1223, 1224, 1226, 1227, 1228, 1229, 1233, 1234, 1235, 1252,
8 1255, 1257, 1258, 1259, 1261, 1263, 1264, 1265, 1266, 1268, 1269, 1270, 1271, 1272, 1273,
9 1274, 1275, 1277, 1278, 1279, 1280, 1281, 1283, 1285, and 2637 relative to judicial matters.